

RESTAURANT, BAR, AND TAVERN SUPPLEMENTAL APPLICATION

Please answer all questions. Submit this Supplemental Application along with a completed ACORD Application and prior carrier loss runs. Some responses may require more space than that provided in the Application itself. Please provide those responses on a separate page and attach it to this Application.

I. APPLICANT

1.1 Applicant (Proposed Named Insured): BDE Florida, LLC	
1.2 DBA (Name of Restaurant, Bar or Tavern): Taco Bell	1.4 Website: www.tacobell.com
1.3 Location of Restaurant or Bar Address: Per attached schedule	
City, State, Zip:	

II. GENERAL BUSINESS INFORMATION

2.1 Does Applicant own or rent the property listed in the Location Address above?	☐ Own	☒ Rent
2.2 Annual Food Gross Sales: \$44,764,966	Annual Alcohol Gross Sales: \$ 0	Other Sales: \$ 0
Describe Other Sales:		Seating Capacity:
2.3 What is the latest business closing time?	☐ Midnight or earlier	☐ After Midnight and by 2:00 AM
	☒ Open 24 hours	☐ After 2:00 AM
2.4 How long has the location shown above been open, under the current ownership?	12 years or	months
If less than three (3) years under current ownership, describe Applicant's prior restaurant / bar ownership or management experience, including length of time.		
2.5 Has the name of the business changed in the last five years?	☐ Yes	☒ No
If yes, what was the prior name?		
2.6 Do you provide table service?	☐ Yes	☒ No
2.7 Are customers allowed to bring their own alcohol on the premises?	☐ Yes	☒ No
2.8 What is the operating season?	☒ Year-Round	☐ Seasonally, From: To:
2.9 Have the police, or any emergency service provider, been called to the premises in the past three (3) years?	☐ Yes	☒ No
If yes, provide details on incident(s), include in attachment if necessary.		
2.10 Has the Applicant had any prior foreclosure, repossession or bankruptcy, or is the Applicant currently involved in any pending foreclosure, repossession or bankruptcy proceeding?	☐ Yes	☒ No
If yes, provide details:		
2.11 Does the Applicant business ever open after 8:00 PM on any given day?	☒ Yes	☐ No

III. PREMISES

All questions below refer to the Location Address of the restaurant, bar or tavern listed in the first section of this Application.

3.1 Is there a swimming pool on the premises?	☐ Yes	☒ No
3.2 Do you own or maintain any apartments or other rental units on the premises?	☐ Yes	☒ No
If yes:		
a. How many apartment units on the premises do you own or maintain?		
b. Are any of these units student or senior housing?	☐ Yes	☒ No
3.3 Is this a waterfront property?	☐ Yes	☒ No
If yes:		
a. Do you own or maintain any beach front or waterfront areas?	☐ Yes	☒ No
b. How many boat docking slips are available for patrons?		
3.4 Do you have any balconies, decks, or rooftop areas?	☐ Yes	☒ No
3.5 Are firearms allowed on the premises (by customers or staff members)?	☐ Yes	☒ No

IV. FOOD SERVICE

☐ N/A

4.1 Does Applicant have a current and active permit or license, as required under local and/or state laws, to provide food service at its restaurant, bar, or tavern?	☒ Yes	☐ No
4.2 Has your license ever been suspended or revoked?	☐ Yes	☒ No
4.3 Have you ever been fined or cited for a critical or severe violation of your license or the local/state health code?	☐ Yes	☒ No
4.4 Is Applicant in compliance with local and state laws and regulations governing food establishments?	☒ Yes	☐ No
4.5 Do you keep records on stock rotation and cooler temperatures?	☒ Yes	☐ No

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4.6	Do you have posted warnings on the premises or on the menus (whichever is required by local law) alerting customers to the hazards associated with consuming raw or undercooked foods?	☐ Yes ☐ No
4.7	Do you have written policies and procedures for the proper handling, preparation, and service of raw seafood and meat? How often are staff members trained on such procedures:	☐ Yes ☐ No

V. ALCOHOL SERVICE

☐ N/A

5.1	Does Applicant have a currently and active liquor permit or license, as required by local and/or state laws, to serve and sell alcoholic beverages at its restaurant, bar, or tavern? If yes, has your license ever been suspended or revoked, or have to ever been fined or cited for violating your license?	☐ Yes ☐ No ☐ Yes ☐ No
5.2	Have you or any employee ever been cited or fined for being in violation of any liquor law, alcoholic beverage control law, or similar law?	☐ Yes ☐ No
5.3	Do you ever offer any drink specials that extend past 9:00 PM?	☐ Yes ☐ No
5.4	Do you offer bottle service (i.e. purchasing of a bottle of liquor to be consumed on the premises) other than wine?	☐ Yes ☐ No
5.5	Do you allow customers to bring their own alcohol on premises for consumption?	☐ Yes ☐ No
5.6	Do you serve any single drink larger than 24 ounces? If yes, provide details:	☐ Yes ☐ No
5.7	Do you sell alcohol to customers for off-premises consumption? If yes, what are the annual gross sales from this? \$	☐ Yes ☐ No
5.8	Are all individuals who serve alcohol required to have active certification through TIPS or another certified program, prior to serving customers alcohol?	☐ Yes ☐ No
5.9	Do you have written guidelines and procedures in place for verifying the age of patrons, to prevent the sale of alcohol to minors?	☐ Yes ☐ No
5.10	Do you have written guidelines and procedures in place for cutting off patrons, and not over-serving patrons, that are visibly intoxicated? Are all staff members trained on the written guidelines and procedures?	☐ Yes ☐ No ☐ Yes ☐ No
5.11	Do you brew or distill your own alcohol on or off premises, for sale to customers, or other parties? If yes: a. What are the gross annual sales from brewing / distilling operations? b. How do you package the alcohol? ☐ Bottles ☐ Cans ☐ Keg/Drum ☐ Other:	☐ Yes ☐ No
5.12	Do you offer or allow drinking games (e.g. beer pong, shot games)?	☐ Yes ☐ No
5.13	Are you located on or near a college campus, or do you target college-aged clientele?	☐ Yes ☐ No
5.14	Do you have bouncers or other security staff? If yes: What type(s) of weapons are they armed with? Are there bag checks, pat downs or frisking at the door?	☐ Yes ☐ No ☐ Yes ☐ No
5.15	Do you have a metal detector at any entrance to the premises?	☐ Yes ☐ No

VI. ENTERTAINMENT

☐ N/A

6.1	Do you have a dance floor area? If yes, what is the square footage?	☐ Yes ☐ No
6.2	What is your total licensed capacity?	
6.3	Do you have any entertainment that attracts crowds larger than 250 people on premises?	☐ Yes ☐ No
6.4	Do you host any special events that allow for increased capacity, or which utilize space around the building? If yes, provide details.	☐ Yes ☐ No
6.5	Do you have any mechanical bulls, nude or topless dancing, or pyrotechnics?	☐ Yes ☐ No
6.6	Do you have any athletic facilities, sports courts, or playgrounds on the premises? If yes, describe and indicate how many?	☐ Yes ☐ No
6.7	What live entertainment do you offer? (Check all that apply) ☐ Karaoke ☐ DJs ☐ Musical Acts/Bands ☐ Raves ☐ Foam Parties ☐ Other: If you indicated Musical Acts/Bands, are any of these performing rap, hip hop, punk rock or heavy metal music? If you indicated DJs or Musical Acts/Bands, are any of these performing electronic dance music?	☐ N/A ☐ Yes ☐ No ☐ Yes ☐ No
6.8	What amusement devices are on the premises? ☐ Pool Tables ☐ Darts ☐ Juke Box ☐ Gambling Games ☐ Arcade Games ☐ Mechanical Rides ☐ Other:	

VII. TABLE SIDE COOKING / OPEN COOKING / HIBACHI

☐ N/A

7.1	Indicate which applies to Applicant's restaurant: ☐ Table Side (Cold) Food Prep ☐ Table Side (Hot) Cooking ☐ Open Cooking (Diners can see cooking area) ☐ Hibachi	
7.1	Are all cooking appliances permanently installed?	☐ Yes ☐ No
7.2	Are hot coals used in cooking process?	☐ Yes ☐ No
7.3	Is there a functioning exhaust hood over all cooking surfaces?	☐ Yes ☐ No

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	If yes, is there a semiannual service contract in place to clean and service the exhaust hood?	☐ Yes ☐ No
7.4	Is there a Class K fire extinguisher in the dining area?	☐ Yes ☐ No
7.5	Is there a staff member dedicated to overseeing the dining area?	☐ Yes ☐ No
7.6	Does Applicant have any live flame demonstrations (other than onion volcano)?	☐ Yes ☐ No
7.7	Are there any stunts involving alcohol and flame?	☐ Yes ☐ No
7.8	Are warning signs posted which state "Hot Surface" around all cooking areas?	☐ Yes ☐ No

VIII. HOOKAH

☒ N/A

8.1	What is the minimum legal age for tobacco use / sales in the state which Applicant operates in? ☐ 18 ☐ 21	
8.2	Are individuals under this age allowed in the hookah area at Applicant's establishment?	☐ Yes ☐ No
8.3	Are individuals under this age allowed to smoke / hookah at Applicant's establishment?	☐ Yes ☐ No
8.4	Does Applicant verify age by checking the identification of all persons prior to providing hookah services?	☐ Yes ☐ No
8.5	Are disposable and individually wrapped mouthpieces provided for each new user?	☐ Yes ☐ No
8.6	Does Applicant have all required licenses or permits to operate a hookah lounge / establishment?	☐ Yes ☐ No
	Has such license or permit ever been suspended or revoked?	☐ Yes ☐ No
8.7	Are working fire extinguishers in the hookah area?	☐ Yes ☐ No
8.8	Is the hookah area ventilated in compliance with applicable law?	☐ Yes ☐ No
8.9	Is hookah area supervised by an employee of Applicant at all times during operating hours?	☐ Yes ☐ No
8.10	Are all coals lit and handled / delivered by an employee of Applicant?	☐ Yes ☐ No
8.11	Are coals completely extinguished following customer use?	☐ Yes ☐ No
8.12	Are coals disposed of in a non-combustible container?	☐ Yes ☐ No
8.13	Is safety cover / wind-guard required by law for the coal?	☐ Yes ☐ No
	If yes, is such safety cover / wind-guard in place?	☐ Yes ☐ No

IX. ADDITIONAL OPERATIONS

9.1	Do you offer valet parking?	☐ Yes ☒ No
	If yes:	
	a. Who is responsible for valet parking? ☐ Employees ☐ Independent Contractor	
	b. Do you verify, prior to hire, that all employed valet parking attendants have a current and valid driver's license?	☐ Yes ☒ No
	c. Do you, prior to hire, review the public driving record of all employed valet parking attendants, to confirm that they have no DUI / DWI violations, criminal or civil traffic violations, citations or other offences on their driving record?	☐ Yes ☒ No
	d. If valet parking is contracted to a third party:	
	i. Do you require evidence of the third party's garage-keeper's liability insurance (via a Certificate of Insurance (COI) or otherwise), at least annually?	☐ Yes ☐ No
	ii. What limits do you require?	
	iii. Do you require the coverage to be direct and primary, or legal liability only?	☐ Yes ☒ No
9.2	Do you offer off-site catering services?	☐ Yes ☒ No
	If yes, what are the annual sales? \$	
9.3	Do you rent your facility, or make it available for private parties or events?	☐ Yes ☒ No
9.4	Does Applicant business deliver food?	☐ Yes ☒ No
9.5	Does Applicant business deliver alcohol?	☐ Yes ☒ No
9.6	Does Applicant business contract or partner with a third-party delivery service (e.g. Uber Eats, Grubhub, etc.) to deliver food or alcohol?	☒ Yes ☐ No
9.7	Please describe any other operations or activities of, or services provided by Applicant, which are not otherwise inquired about in this application:	

X. PROPERTY

☒ N/A

10.1	Are there any wood burning stoves or fireplaces on the premises?	☐ Yes ☐ No
10.2	What types of cooking are done on the premises? (Check all that apply)	☐ N/A
	☐ Grilling ☐ Deep Fat Frying ☐ Open Broiling ☐ Solid Fuel Cooking ☐ Roasting ☐ Tableside Cooking	
	☐ Barbecue ☐ Smokehouse ☐ Other:	
10.3	Are any barbeque grills, barbeque pits, fire pits, open fires for cooking, smokers, or smokehouses utilized on the premises?	☐ Yes ☐ No
	If yes, where are they located? ☐ In the building ☐ Beside the building ☐ feet from the building	
10.4	If any grilling, frying or other grease laden cooking is done on premises, please indicate if any of the following steps are taken to reduce spontaneous combustion/fire hazard:	
	a. Do you store greasy and soiled rags in metal cabinets or containers with closing lids?	☐ Yes ☐ No
	b. Do you use commercial grade appliances and detergents to launder greasy and soiled rags on premises?	☐ Yes ☐ No
	c. Is a professional laundry service used which specializes in laundering greasy and soiled rags?	☐ Yes ☐ No
10.5	Are you in compliance with local and state fire codes and regulations?	☐ Yes ☐ No

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10.6	Do you have wall-mounted fire extinguishers in place in all high-risk areas?	☐ Yes	☐ No
10.7	Do you have an automatic fire suppression system in place above all cooking surfaces?	☐ Yes	☐ No
	If yes:		
	a. Does it automatically alert the local fire department?	☐ Yes	☐ No
	b. Does it comply with Standard UL 300?	☐ Yes	☐ No
10.8	Is your facility situated on a wharf, pier, or dock?	☐ Yes	☐ No
10.9	Are all gas and electric cooking appliances equipped with automatic safety shut-off valves and manual pulls?	☐ Yes	☐ No
10.10	Are all fire suppression systems, exhaust hood systems and exhaust duct systems on premises, cleaned and maintained at least semi-annually by a third party which specializes in such professional cleaning services?	☐ Yes	☐ No

XI. SECURITY INFORMATION

11.1	Does Applicant have security?	☐ Yes	☒ No
	If yes:		
	a. Are security personnel? ☐ Employees ☐ Independent Contractor		
	b. Do all security personnel sign waivers?	☐ Yes	☒ No
	c. Do you, prior to hire, review the public record of all employed security, to confirm that they have no criminal or civil violations, citations or other offenses on their record?	☐ Yes	☒ No
	d. If security is contracted to a third party:		
	i. Do you require evidence of the third party's general liability liability insurance (via a Certificate of Insurance (COI) or otherwise), at least annually?	☐ Yes	☒ No
	ii. What limits do you require?	☐ Yes	☒ No
	iii. Do you require written agreement with independent security contractor?	☐ Yes	☒ No
11.2	Does the applicant engage police officers for work in or about the premises?	☐ Yes	☒ No
	If yes, how are they engaged and paid? ☐ With Municipality ☐ Secondary Employment Company		
11.3	Are security personnel responsible for I.D checks?	☐ Yes	☒ No
11.4	Are incident logs documenting when person was refused service or other alcohol related events maintained?	☐ Yes	☒ No
11.5	Does Applicant have video surveillance?	☐ Yes	☒ No
11.6	If Yes, how many days do you keep the video tapes?		
11.7	Please describe describe procedures in place for entry control (capacity limits)?:		

FRAUD WARNINGS

Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance containing any materially false information or conceals, for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime and subjects that person to criminal and civil penalties.

APPLICABLE IN AL, AR, DC, LA, MD, NM, RI AND WV

Any person who knowingly (or willfully)* presents a false or fraudulent claim for payment of a loss or benefit or knowingly (or willfully)* presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison. *Applies in MD only.

APPLICABLE IN CO

It is unlawful to knowingly provide false, incomplete, or misleading facts or information to an insurance company for the purpose of defrauding or attempting to defraud the company. Penalties may include imprisonment, fines, denial of insurance and civil damages. Any insurance company or agent of an insurance company who knowingly provides false, incomplete, or misleading facts or information to a policyholder or claimant for the purpose of defrauding or attempting to defraud the policyholder or claimant with regard to a settlement or award payable from insurance proceeds shall be reported to the Colorado Division of Insurance within the Department of Regulatory Agencies.

APPLICABLE IN FL AND OK

Any person who knowingly and with intent to injure, defraud, or deceive any insurer files a statement of claim or an application containing any false, incomplete, or misleading information is guilty of a felony (of the third degree)*. *Applies in FL only.

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APPLICABLE IN KS

Any person who, knowingly and with intent to defraud, presents, causes to be presented or prepares with knowledge or belief that it will be presented to or by an insurer, purported insurer, broker or any agent thereof, any written, electronic, electronic impulse, facsimile, magnetic, oral, or telephonic communication or statement as part of, or in support of, an application for the issuance of, or the rating of an insurance policy for personal or commercial insurance, or a claim for payment or other benefit pursuant to an insurance policy for commercial or personal insurance which such person knows to contain materially false information concerning any fact material thereto; or conceals, for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act.

APPLICABLE IN KY, NY, OH AND PA

Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information or conceals for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime and subjects such person to criminal and civil penalties (not to exceed five thousand dollars and the stated value of the claim for each such violation)*.

*Applies in NY only.

APPLICABLE IN ME, TN, VA AND WA

It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties (may)* include imprisonment, fines and denial of insurance benefits. *Applies in ME only.

APPLICABLE IN NJ

Any person who includes any false or misleading information on an application for an insurance policy is subject to criminal and civil penalties.

APPLICABLE IN OR

Any person who knowingly and with intent to defraud or solicit another to defraud the insurer by submitting an application containing a false statement as to any material fact may be violating state law.

APPLICABLE IN VT

Any person who knowingly presents a false statement in an application for insurance may be guilty of a criminal offense and subject to penalties under state law.

REPRESENTATIONS AND SIGNATURE

By signing this Application, the undersigned represents, on behalf of the Applicant and all proposed insureds, the following:

- After conducting due diligence, the statements in the Application and Supplemental Application furnished to the Company are accurate and complete;
- Those statements furnished to the Company are representations Applicant makes on behalf of all proposed Insureds;
- Those representations are a material inducement to the Company to provide a premium proposal;
- If a policy is issued, the Company will have issued this Policy in reliance upon those representations;
- If there is any material change in the Applicant's condition or in the Applicant's activities, services, or answers provided in this Application that occurs or is discovered between the date this Application is signed and the Effective Date of any policy, if issued, Applicant will immediately report such material change to the Company in writing; and
- The Company reserves the right, upon receipt of such notice, to change or rescind any insurance proposal previously offered by the Company.

As used above, the term "Company" refers to Origin Specialty Underwriters and the carriers issuing policy

NOTHING IN THIS APPLICATION SHOULD BE INTERPRETED TO MEAN THAT COVERAGE WILL BE OFFERED OR THAT ANY ITEMS REFERENCED IN QUESTIONS OR ANSWERS TO QUESTIONS WILL BE COVERED EVEN IF COVERAGE IS OFFERED AND BOUND.

This Application must be signed by an authorized partner, officer or other principal of Applicant shown in Question 1.1 of this Application.



Signature of authorized representative of Applicant

Brian Ellerson

Type / Print name of authorized representative

CEO

Title

4/7/26

Date

Producer Signature

Date